

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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SHANNON YOUNG,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
SHAUN CLARKE (TAX ID # 955823) and NYPD
OFFICERS JANE and JOHN DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
Members of the New York City Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Kings County as they
place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 22, 2021

Respectfully submitted,

/s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
POLICE OFFICER SHAUN CLARKE (Tax Reg. # 955823), 79th Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
SHANNON YOUNG,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER
SHAUN CLARKE (Tax ID # 955823) and NYPD
OFFICERS JANE and JOHN DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiff **Shannon Young**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected him to, among other things, false arrest, unlawful search and seizure, conspiracy, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Shannon Young is and was at all relevant times a resident of New York.
3. POLICE OFFICER SHAUN CLARKE is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER SHAUN CLARKE is being sued in his individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

11. On or about September 7, 2020 at approximately 1:03 p.m., in the vicinity of 243 Hancock Street, Brooklyn, New York, Plaintiff Young entered a local small grocery store or bodega with the intention of buying a sandwich when, upon information and belief, police officers from the 79th precinct, including defendant NYPD officer Shaun Clarke, NYPD officers John and Jane Does #1-8, and other yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Young.
12. Defendant officers entered the bodega and one officer, upon information and belief, told Plaintiff Young to “step out of the store”. Once defendant officers entered the bodega and spoke to Plaintiff Young, he was not free to walk away or leave.
13. Defendant officers told Plaintiff Young he was accused of committing a robbery. Plaintiff Young asked them who had made the allegation and directed their attention to the fact that he was dressed in slippers, shorts and a t-shirt. Defendant officers, including, upon information and belief, defendant NYPD officer Shaun Clarke, NYPD officers John and Jane Does #’s 1-8, and other yet unknown police officers, refused to provide any information to Plaintiff Clarke regarding this alleged robbery. Defendant officers brought Plaintiff Young outside the store and handcuffed him.
14. Plaintiff told defendant officers he was not involved in a robbery. There were no proceeds of a robbery on his person and no eyewitness identified him as the perpetrator of any crime. Defendant officers ignored this objective evidence demonstrating the invalidity of the charges and proceeded to arrest him.
15. Plaintiff was transferred to the 79th precinct while wearing handcuffs. After nearly 24 hours in custody, he was released from the precinct without being charged with any crime. During his confinement he was subject to depraved, filthy, and inhumane conditions.

STATE CLAIMS

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

16. Plaintiff repeats and alleges paragraphs 1 through 15 as if fully set forth herein.
17. The acts and conduct of the defendant CLARKE and/or POLICE OFFICERS JOHN and JANE DOE #1-8 constitute false arrest and false imprisonment under the laws of the State of New York. Plaintiff was subjected to illegal, improper, and false arrest by the defendant CLARKE and/or POLICE OFFICERS JOHN and JANE DOE” #1-8, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement.

18. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
19. As a result of the foregoing, Plaintiff's liberties were restricted for an extended period of time, she was put in fear of her safety, and she was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.
20. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

21. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 20 with the same force and effect as if more fully set forth at length herein.
22. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties;
23. The aforementioned acts of negligent hire, retention, training, and supervision by the City of New York and the New York City Police Department include, but are not limited to failing to take reasonable control/and or discipline officers who lie, fabricate evidence, engage in illegal acts toward other police officers or civilians, and/or commit perjury to cover up police misconduct and/or inflate arrest statistics;

THIRD CAUSE OF ACTION

FAILURE TO INTERVENE

24. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 23 with the same force and effect as if more fully set forth at length herein.
25. Defendant CLARKE and/or POLICE OFFICERS JOHN and JANE DOE" #1-8 had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
26. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
27. As a result of the foregoing, plaintiff was subjected to an unlawful detention and physical and emotional injury to her person over the course of the false arrest.

28. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
29. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.
31. By the actions described herein, the individually named police officer defendants Defendant CLARKE and/or POLICE OFFICERS JOHN and JANE DOE” #1-8, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff’s statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
32. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries, including injury extreme emotional injury, stress, and humiliation.
33. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIFTH CAUSE OF ACTION

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if fully set forth herein.
35. All of the aforementioned acts of defendants CLARKE and/or POLICE OFFICERS JOHN and JANE DOE” #1-8, their agents, servants, and employees, were carried out under the color of state law.
36. All of the aforementioned acts deprived plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

37. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
38. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SIXTH CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
41. As a result of the aforesaid conduct by defendants and/or NYPD OFFICERS CLARKE and “JOHN DOE” #1-8, plaintiff was subjected to an illegal, improper, and false arrest by the defendants CLARKE and/or POLICE OFFICERS “JOHN DOE” #1-8, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
42. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, she was put in fear for her safety, and she was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
44. Defendants CLARKE and/or POLICE OFFICERS “JOHN DOE” #1-8 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.
45. Defendants CLARKE and/or POLICE OFFICERS “JOHN DOE” #1-8 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

46. As a result of the defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

EIGHTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
49. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

50. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.
51. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
52. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
53. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
54. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
55. The acts complained of deprived the plaintiffs of their rights:
 - G. Not to be deprived of liberty without due process of law;
 - H. To be free from seizure and arrest not based upon probable cause;
 - I. Not to have summary punishment imposed upon them; and
 - J. To receive equal protection under the law.

WHEREFORE, SHANNON YOUNG, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
April 23, 2021

Respectfully submitted:

By: /s/ *Sydney Ohagan*
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New York, New York 10005
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

POLICE OFFICER SHAUN CLARKE (Tax Reg. # 955823), 79th Precinct, Brooklyn, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
April 23, 2021

/s/ *Sydney Ohagan*
Sydney O'Hagan, Esq.